

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #08	CCRB Case #: 201606401	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Friday, 07/22/2016 9:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/22/2018	Precinct: 42
Date/Time CV Reported Sun, 07/24/2016 12:23 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 07/24/2016 12:23 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mike Morales	15119	956188	042 PCT
2. POM Charles Buglione	354	955771	042 PCT
3. POM Matthew Velger	10295	951385	042 PCT
4. SGT Colin Caesar	01143	929811	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andrew Gee	12551	956669	042 PCT
2. POM Rubenson Marcellus	14793	956063	042 PCT
3. SGT Saul Jeune	768	936817	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Charles Buglione	Discourtesy: In front of § 87(2)(b) in the Bronx, Police Officer Charles Buglione spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Charles Buglione	Off. Language: In front of § 87(2)(b) in the Bronx, Police Officer Charles Buglione made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . POM Charles Buglione	Abuse: Police Officer Charles Buglione entered § 87(2)(b) in the Bronx.	C . Substantiated
D . POM Mike Morales	Abuse: Police Officer Mike Morales entered § 87(2)(b) in the Bronx.	D . Unsubstantiated
E . POM Charles Buglione	Abuse: Police Officer Charles Buglione searched § 87(2)(b) in the Bronx.	E . Unsubstantiated
F . POM Charles Buglione	Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Charles Buglione spoke discourteously to § 87(2)(b) and § 87(2)(b)	F . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
G . POM Charles Buglione	Discourtesy: At the 42nd Precinct Stationhouse, Police Officer Charles Buglione spoke discourteously to § 87(2)(b)	G . Unsubstantiated
H . POM Charles Buglione	Off. Language: At the 42nd Precinct Stationhouse, Police Officer Charles Buglione made remarks to § 87(2)(b) based upon race.	H . Unsubstantiated
I . POM Charles Buglione	Discourtesy: At the 42nd Precinct Stationhouse, Police Officer Charles Buglione spoke discourteously to § 87(2)(b)	I . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 22, 2016 at approximately 9:00 p.m., § 87(2)(b) got into a physical altercation with her tax preparer, § 87(2)(b) at § 87(2)(b) in the Bronx. An ambulance and six officers: PO Mike Morales, PO Charles Buglione, PO Matthew Velger, Sgt. Colin Caesar, PO Andrew Gee and PO Rubenson Marcellus, all of the 42nd Precinct, arrived on scene. PO Morales and PO Buglione arrived first, and went inside to speak to § 87(2)(b) while § 87(2)(b) stayed outside with EMS. PO Buglione and PO Morales placed § 87(2)(b) under arrest. They then returned to speak to § 87(2)(b) explaining that because § 87(2)(b) had also received injuries, she would also be placed under arrest. During this time, PO Buglione allegedly used discourteous and offensive language towards her (**Allegations A and B**). While § 87(2)(b) was sitting in the RMP, her daughters, § 87(2)(b) and § 87(2)(b) and mother, § 87(2)(b) approached PO Buglione and PO Morales. § 87(2)(b) told the officers that some of their tax papers were still in § 87(2)(b)'s apartment and begged them to retrieve it. PO Buglione then opened § 87(2)(b)'s door and allegedly entered the apartment (**Allegation C**). PO Morales and the girls allegedly followed behind him (**Allegation D**). PO Buglione then purportedly went to § 87(2)(b)'s desk and began looking for § 87(2)(b) tax papers (**Allegation E**). Once all the documents were retrieved, they left and PO Buglione told § 87(2)(b) and § 87(2)(b) "This never fucking happened" (**Allegations F**). PO Buglione and PO Morales then took § 87(2)(b) to the stationhouse. When they arrived, § 87(2)(b) told the desk sergeant that she knew people who worked for the 42nd Precinct. In response, PO Buglione allegedly said, "Yeah, cuz that's how many fucking times you've been to jail" (**Allegation G**). § 87(2)(b) replied that she didn't know when she had last been to jail, and PO Buglione purportedly said, "You people don't know how to act" (**Allegation H**). § 87(2)(b) and § 87(2)(b) were then placed in their cells where PO Buglione allegedly continued to speak discourteously to them (**Allegation I**).

There is no video footage capturing this incident.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- The complaint was deemed unsuitable for mediation due to the arrests of § 87(2)(b) and § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- As of January 25, 2017, a notice of claim has not been filed by [§ 87(2)(b)] (see Board Review #5).
- As of January 31, 2017, a notice of claim has not been filed by [§ 87(2)(b)] (see Board Review #6).
- As of January 31, 2017, a notice of claim has not been filed by [§ 87(2)(b)] (see Board Review #7).

Civilian and Officer CCRB Histories

- PO Buglione has been a member of service for three years. He currently has two additional cases pending investigation: CCRB case #s 201608440 and 201608679. PO Buglione has been a subject in three previous CCRB complaints, totaling eight allegations—seven of which received a disposition of unsubstantiated, [§ 87(2)(g), § 87(4-b)]. In CCRB case #201709200 an allegation of offensive language (race) was unsubstantiated. [§ 87(2)(g)].
- PO Morales has been a member of service for three years. He currently has two additional cases pending investigation: CCRB case #s [§ 87(2)(g)] and 201608679. He has been a subject in two previous CCRB complaints, totaling two allegations. [§ 87(2)(g)].
- PO Velger has been a member of service for three years. He has been a subject in three previous CCRB complaints, totaling three allegations. [§ 87(2)(g), § 87(4-b)].
- Sgt. Caesar has been a member of service for fourteen years. He has been a subject in nine previous cases, totaling twenty charges. In CCRB case #201509617, an allegation of abuse (stop) was substantiated with a Board Disposition of Substantiated (Command Discipline A). The NYPD disposition is still pending. [§ 87(2)(g)].
- [§ 87(2)(b)] has filed three other CCRB cases. [§ 87(2)(b)].

- This is § 87(2)(b) first CCRB complaint (see Board Review #13).
- This is § 87(2)(b) first CCRB complaint (see Board Review #14).
- This is § 87(2)(b) s first CCRB complaint (see Board Review #15).

Potential Issues

On August 31, 2016, § 87(2)(b) left a DIRAD message stating that he wanted to file a complaint against his arresting officer. Upon follow up, § 87(2)(b) stated that, in consultation with his attorney, he wanted to hold off on filing a CCRB complaint until the conclusion of his trial. Undersigned was in contact with § 87(2)(b) s attorney, § 87(2)(b) of Bronx Defenders, during the course of the case, who affirmed § 87(2)(b) s desire to pursue a CCRB complaint at the conclusion of his case. § 87(2)(b) was most recently scheduled for court on § 87(2)(b). As such, he was unable to provide a statement.

§ 87(2)(b) provided an unverified email statement, forwarded by § 87(2)(b) on August 25, 2016. The undersigned explained to § 87(2)(b) that the CCRB needed a notarized statement, and following its receipt would follow up with additional questions. § 87(2)(b) was originally cooperative, but never sent in her verified statement. She later became unresponsive.

Findings and Recommendations

Allegation A - Discourtesy: In front of § 87(2)(b) in the Bronx, Police Officer Charles Buglione spoke discourteously to § 87(2)(b)

Allegation B - Offensive Language: In front of § 87(2)(b) in the Bronx, Police Officer Charles Buglione made remarks to § 87(2)(b) based upon race.

It is undisputed that after § 87(2)(b) sought the tax services of § 87(2)(b) they got into an altercation and both § 87(2)(b) and § 87(2)(b) called 911. § 87(2)(g)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) (see Board Review #17) testified that she first contacted § 87(2)(b) a tax preparer in her neighborhood to obtain tax assistance for her daughter, § 87(2)(b) college paperwork. § 87(2)(b) worked out of his home and after § 87(2)(b) arrived for her appointment she and § 87(2)(b) disagreed over the terms of contract. § 87(2)(b) informed § 87(2)(b) that she would be taking her business elsewhere, and as she attempted to grab her paperwork and exit

the apartment, § 87(2)(b) grabbed her hair and punched her on the side of her face. A struggle ensued and eventually § 87(2)(b) was able to break free. After leaving § 87(2)(b)'s apartment, she ran out and told a woman in front of the building that she had been attacked. She asked to use her phone to call her daughter and another woman called the police. The police and an ambulance arrived simultaneously. First, two Hispanic cops arrived—PO Morales, whose name § 87(2)(b) obtained from her arrest report and PO Buglione, whose name § 87(2)(b) obtained directly from the 42nd Precinct. Then a black officer, identified through investigation as PO Marcellus and an Asian officer, identified through investigation as PO Gee, also arrived. They asked her what happened and she said that § 87(2)(b) attacked her. The officers went into the building with one EMS driver and § 87(2)(b) stayed in the ambulance with another EMS driver. The EMS asked her if she had any medical conditions and § 87(2)(b) told him that § 87(2)(b)

§ 87(2)(b) said the EMS wrote everything down. He asked her where her medicine was and she told him it was in the house. § 87(2)(b)

PO Morales and PO Buglione then returned. At that point, the EMS had not yet had an opportunity to take § 87(2)(b) vitals, clean her, bandage her wounds or have § 87(2)(b) sign any paperwork. The police explained to § 87(2)(b) she was being arrested because § 87(2)(b) also had injuries and they asked her to stand up. § 87(2)(b)

PO Buglione replied, “What the fuck is that? What the fuck do you mean? I don’t have time for this shit,” and started going off about the neighborhood. The cops then walked away and spoke to someone. § 87(2)(b) assumed it was a supervisor because when they returned they told her that they were going to give her a Desk Appearance Ticket (DAT), which would only require her to come to the station for a few hours instead of stay the whole weekend. § 87(2)(b) then told PO Morales she couldn’t breathe and asked him if he had an asthma pump. He told her had albuterol, but explained that if he gave it to her, he would be obligated to take her to the hospital. PO Buglione stated, “I don’t have time for this shit. She’s going to be out in two fucking hours and when she’s out she can handle whatever medical shit she has going on. This is stupid shit. This is how you people act.” PO Morales then said they couldn’t let § 87(2)(b) take medicine to the stationhouse. He asked where she lived and when she told him down the street, he suggested that her kids go and get the medication so she could take it before they left to the stationhouse. PO Morales spoke to § 87(2)(b) children, § 87(2)(b) age § 87(2)(b) and § 87(2)(b) and her mother, § 87(2)(b) about getting the medicine and they left to retrieve it. The officers then placed her in handcuffs, escorted her to the police car and approximately five minutes later, they left. The ambulance drivers stayed on scene, but did not finish examining her. The officers did not wait for her children to return with her medicine.

§ 87(2)(b) (see Board Review #18) stated that at approximately 9:00 p.m., her mother, § 87(2)(b) called her sister, § 87(2)(b) and told her that she had been attacked by § 87(2)(b). There was bad cell phone service, so § 87(2)(b) and their grandmother, § 87(2)(b) went to § 87(2)(b). § 87(2)(b) was bleeding and seemed out of it so they called 911. An ambulance came first, and the police came after. Two marked police cars arrived. From one car, an Asian cop, identified as PO Gee and a black cop, identified as PO Marcellus got out. From the second car, a nice officer, identified through

investigation as PO Morales, and a rude officer, identified as PO Buglione got out. Everyone stood in front of the building for a couple of minutes. PO Buglione and another officer asked § 87(2)(b) and § 87(2)(b) to go with them because they didn't know where § 87(2)(b) lived. Later, as the police were handcuffing her mom, they told § 87(2)(b) that they could go get medicine for their mom. § 87(2)(b) and § 87(2)(b) went to go retrieve the medicine, but when they returned everyone had left.

§ 87(2)(b) (see Board Review #19) stated that she and her granddaughters, § 87(2)(b) and § 87(2)(b) stood in the back hallway of § 87(2)(b)'s apartment building, while her daughter, § 87(2)(b) stood outside with the police and EMS. She believed that there were two EMS and four cops in total. § 87(2)(b) could not hear what was being said outside and did not recall hearing any of the officers using profanity. When § 87(2)(b) came out of the apartment with her granddaughters, § 87(2)(b) was upset and wanted her blood pressure medicine. A male officer, identified through investigation as PO Buglione, stated, "We don't have time for that." § 87(2)(b) tried to tell § 87(2)(b) where her medicine was, but the officers told her they were taking her to the stationhouse and put her in a police car. § 87(2)(b) told § 87(2)(b) that they were going to grab her medicine and meet her at the stationhouse.

In her detailed phone statement, § 87(2)(b) (see Board Review #20), whose number was obtained from her 911 call, said that she was sitting outside § 87(2)(b) with her kids when a girl, identified through investigation as § 87(2)(b) came out and said, "Help me." § 87(2)(b) didn't understand what was going on and § 87(2)(b) replied that she had been attacked by a tax guy and asked § 87(2)(b) to call the police. She was bleeding. § 87(2)(b) called 911 and shortly thereafter four or five police officers, who § 87(2)(b) could not describe, arrived and went inside the building. She could not see inside the building from where she was. The police arrested the tax guy, identified through investigation as § 87(2)(b) who was laughing as he was walking out. The officers put § 87(2)(b) in the ambulance. § 87(2)(b) did not see the police being disrespectful, though she noted that she could not hear what the police said to § 87(2)(b) or § 87(2)(b). She did not hear the police curse and said that the police seemed really calm and nice. She did not speak directly to the police officers.

EMT § 87(2)(b) (see Board Review #20) stated that he could not really remember what happened on July 22, 2016 but testified that he did not recall any officers on scene using profanity or making disparaging remarks about the neighborhood. EMT § 87(2)(b) said that any use of profanity would have stuck out in his mind, and he said that officers had never treated anyone on any of his calls that way, ever. § 87(2)(a) PHL § 18(6)

EMT § 87(2)(b) did admit, however, that in some instances patients refused to provide the information and thus, the patient history was blank. § 87(2)(a) PHL § 18(6)

EMT § 87(2)(b) (see Board Review #21) testified that he and EMT § 87(2)(b) responded to an incident involving a woman who had been doing her taxes with a man, who was not a legitimate tax-preparer. When they arrived on scene, the woman was standing outside a building. He could not recall what she looked like. EMT § 87(2)(b) went to go treat the woman, but she didn't want to be treated or have her vitals taken. EMT § 87(2)(b) noted that it was more a NYPD matter than anything else. He and EMT § 87(2)(b) stayed with the woman until they received a RMA, which is issued when patients are of sound mind and body and choose to decline medical treatment. The woman had no desire to go to the hospital and signed the form. Looking at her EMS report, EMT § 87(2)(b) could not say why the woman did not want to go. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) He noted that if she had mentioned it, it would be in the report. He did not hear her ask if her children could get her medication. He noted that if she needed medication, depending on her symptoms, if it was basic life support medicine, like Albuterol, EMS would administer it and transport her to the hospital. If it was a higher level medication, they would call support analysts or paramedics to come. The paramedics would assess her and then administer it. After the woman signed the RMA the NYPD took over. EMT § 87(2)(b) noted that he responded to calls of assaults frequently and this one did not have anything unusual that made it stick out. He would have recalled if officers were using a lot of profanity on scene. He did not hear any of the officers use profanity or hear them say anything about the neighborhood or people that lived in the Bronx. EMT § 87(2)(b) added that if he had heard those types of comments, it would have been a unique experience that stood out.

PO Buglione (see Board Review #22) stated that he and PO Morales received a call for an assault in progress, reported by § 87(2)(b). Upon arriving to the scene they saw § 87(2)(b) in the ambulance. PO Buglione noted that at the time, he did not realize that § 87(2)(b) was affiliated with the assault. There were also four other officers on scene, including Sgt. Caesar and PO Velger. PO Morales stayed outside with Sgt. Caesar and PO Buglione went inside the building with PO Velger to talk to § 87(2)(b). PO Buglione noted that § 87(2)(b) worked out of an apartment building and his apartment was half business, half apartment. PO Buglione saw § 87(2)(b) and § 87(2)(b) in the hallway and instructed them to stay there. He spoke to § 87(2)(b) who had visible injuries and stated that he wanted § 87(2)(b) arrested. PO Buglione noted he was the main officer speaking to § 87(2)(b) and they talked for about ten to fifteen minutes. At some point an officer came and told PO Buglione that § 87(2)(b) had visible injuries and that she wanted § 87(2)(b) arrested. § 87(2)(b) admitted to PO Buglione that § 87(2)(b) had become injured during their altercation and PO Buglione explained to him that was grounds for arrest. § 87(2)(b) was compliant and PO Buglione handcuffed him and took him to the RMP.

After PO Buglione put § 87(2)(b) in the car, he walked back to the ambulance. He spoke to PO Morales who gave him the background on § 87(2)(b). § 87(2)(b) was being attended to by an EMS and speaking to PO Morales. PO Buglione saw only one EMS person and told them to do what they needed to do to take care of her. The EMT reported that § 87(2)(b) had denied medical treatment. PO Buglione stated he did not hear anything about § 87(2)(b) or use any profanity towards § 87(2)(b). He also stated that § 87(2)(b) did not ask him if her children could get her medicine. He added that even if she had, her children would not be able to give the medicine to her as medicine had to be administered at a hospital and noted that requests

to retrieve medicine were always met with a reply of no. PO Buglione said that § 87(2)(b) appeared to know she was going to get arrested and was very compliant. He placed her under arrest and PO Morales put handcuffs on her. He stated that he did not make any comments to § 87(2)(b) about the neighborhood that they were in or its residents, adding that he had grown up in the Bronx. PO Buglione also noted that although it was PO Morales' decision to make, because it was his arrest, both he and PO Morales both decided to give § 87(2)(b) and § 87(2)(b) a DAT. He stated that he did not have any conversations about a DAT in front of § 87(2)(b) or use profanity towards her in relation to a DAT versus booking. He stated that § 87(2)(b) would not have had any knowledge about a DAT on scene, as it was not approved until they were at the stationhouse with the desk sergeant.

PO Morales (see Board Review #23) stated that he and his partner, PO Buglione received a radio call for an assault in progress. When they got there, they saw § 87(2)(b) standing outside of the building with her mother and two daughters. Her daughter was holding a large pile of papers. About a minute or two after, Sgt. Caesar arrived. PO Morales' described § 87(2)(b) initial demeanor as upset. PO Morales began interviewing § 87(2)(b) who told him that she had been attacked and punched in the face by § 87(2)(b). PO Buglione decided to go inside the building and speak to § 87(2)(b) while PO Morales stayed outside and spoke to § 87(2)(b). Shortly thereafter, two ambulances arrived. One ambulance, containing two EMTs checked out § 87(2)(b) who was complaining of pain to the face and finger. As she was being examined, § 87(2)(b) explained why she had gotten into the dispute with § 87(2)(b). PO Morales estimated that he spoke with § 87(2)(b) for six to seven minutes. After she finished her story, PO Morales asked her to come with him into the building to identify § 87(2)(b). As soon as they entered the building, they made a quick right and came to § 87(2)(b)'s first floor apartment. § 87(2)(b) pointed out § 87(2)(b) who was standing in front of his door and speaking to PO Buglione. After § 87(2)(b) identified § 87(2)(b) PO Morales instructed her to go back to the ambulance. PO Morales then approached PO Buglione and told him that there was going to be an arrest for § 87(2)(b). PO Buglione told him that § 87(2)(b) had also been attacked and PO Morales realized that § 87(2)(b) was also going to have to be placed under arrest because there were cross complaints.

PO Morales approached the ambulance and informed § 87(2)(b) that because § 87(2)(b) also had injuries, she was also going to have to be arrested. § 87(2)(b) then turned around and instructed PO Morales to cuff her. PO Morales instructed § 87(2)(b) to finish up with EMS and explained that unless she needed to go to the hospital, once she was done, they would put her under arrest. § 87(2)(b) told EMS she did not want to go to the hospital. § 87(2)(b)

She also did not say anything to PO Morales about asthma—only pain to her face and finger. At some point during this time, PO Buglione came and placed § 87(2)(b) in the RMP. PO Morales could not recall if PO Buglione ever came over, but stated that § 87(2)(b) did not speak to PO Buglione. He did not hear PO Buglione use profanity towards § 87(2)(b). Neither he nor PO Buglione made any comments in the neighborhood or how people in the neighborhood act. PO Morales stated that he approached Sgt. Caesar and asked him if he thought they could issue § 87(2)(b) a DAT. PO Buglione was not with him and Sgt. Caesar stated that the DAT was his decision, since it was his arrest. PO Morales told Sgt. Caesar that the complainants seemed like

decent people and he would run it by the desk sergeant and if the desk sergeant okayed it, he was willing to do it.

PO Velger (see Board Review #24), testified that he was serving as Sgt. Caesar's vehicle operator. He could not recall anything relating to the incident.

Sgt. Caesar (see Board Review #25) stated that he received a radio request to verify an arrest. He explained that the process for verifying an arrest usually involved an officer handling a radio run and where an arrest situation was applicable and then calling a supervisor to verify the crime. Sgt. Caesar was with PO Velger, who was acting as his operator. When he arrived on scene, he saw an ambulance out front with two EMTs. PO Buglione and PO Morales were also there. He did not know how long they had been on scene. Sgt. Caesar spoke briefly to two females, one of whom identified herself as § 87(2)(b) mother or sister, who said that they had been there doing their taxes. He did not recall them asking about any paperwork that had been left in the apartment. Sgt. Caesar went into the building, while PO Velger stayed outside, and was met in front of the apartment door by PO Buglione and PO Morales. § 87(2)(b) was also handcuffed and standing in front of the apartment door, which was closed. Sgt. Caesar did not hear him instruct PO Buglione to lock the door. They explained that two individuals had filed a cross complaint. Sgt. Caesar believed § 87(2)(b) was in the ambulance, but did not interact with her or hear her make any requests regarding medicine. § 87(2)(b)

§ 87(2)(b) He did not hear PO Buglione use profanity towards her or make disparaging comments about the neighborhood they were in. Sgt. Caesar stated that he did not have a conversation with PO Buglione or PO Morales about a DAT versus arrest, as that was the decision of the desk sergeant. After Sgt. Caesar finished the conversation with PO Morales and PO Buglione, he left. He estimated that he was on scene for approximately ten minutes in total.

PO Marcellus (see Board Review #26) testified that he responded to a backup call for § 87(2)(b). When he showed up, he saw that Sgt. Caesar had everything under control and left. He could not recall anything about the job.

PO Gee (see Board Review #27) stated that he responded to a radio run to provide backing for PO Buglione and PO Morales for an assault at § 87(2)(b). He stated that he and PO Marcellus were not there for that long because PO Morales and PO Buglione said everything was okay. They hung outside the building and did not interact with anyone outside of the officers. PO Gee could not recall any other details regarding the incident.

Patrol Guide Procedure 203-09 states that officers must be "courteous" and respectful" (see Board Review #28). Patrol Guide Procedure 203-10 states that an officer is prohibited from using discourteous or disrespectful remarks regarding another person's ethnicity or race (see Board Review #29).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as ***Unsubstantiated***.

Allegation C - Abuse: Police Officer Charles Buglione entered § 87(2)(b) in the Bronx.

Allegation D - Abuse: Police Officer Mike Morales entered § 87(2)(b) in the Bronx.

Allegation E - Abuse: Police Officer Charles Buglione searched § 87(2)(b) in the Bronx.

Allegation F - Discourtesy: At § 87(2)(b) in the Bronx, Police Officer Charles Buglione spoke discourteously to § 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) hired § 87(2)(b) to assist her with tax services and in the course of their altercation, documents were left behind § 87(2)(g)

§ 87(2)(b) (see Board Review #17) stated that after telling § 87(2)(b) she would no longer use his services, § 87(2)(b) handed § 87(2)(b) some of her envelopes that were located near his television. She grabbed some of her other folders, and as she was walking to the door, § 87(2)(b) attacked her and dragged her back to the living room. At some point during this struggle, § 87(2)(b)'s shoe came off. § 87(2)(b) was pressing his forearm against § 87(2)(b)'s neck and she bit him. § 87(2)(b) then let go. § 87(2)(b) ran to get her papers, when § 87(2)(b) hit her again. He then suddenly stopped and § 87(2)(b) ran out of the house, grabbing whatever papers she could on the way. She did not grab all of her paperwork.

§ 87(2)(b) (see Board Review #18) testified that after assisting the officers find § 87(2)(b) § 87(2)(b)'s apartment, they remained in the downstairs lobby. After § 87(2)(b) was escorted out, PO Morales and PO Buglione remained on scene. § 87(2)(b) asked the officers about her mother's papers, which were still inside § 87(2)(b)'s apartment. PO Morales asked what they needed the papers for, and § 87(2)(b) explained that they were tax papers she needed for college. PO Morales replied that they couldn't go inside to get the papers because they didn't have a search warrant, while PO Buglione said that they were going to just go in and out of the apartment to grab the papers. PO Buglione told them, "This never happened." § 87(2)(b) § 87(2)(b) stayed in the lobby while § 87(2)(b) and § 87(2)(b) went inside § 87(2)(b)'s apartment to get the papers.

When they got there, the door was still open. § 87(2)(b) and § 87(2)(b) asked if they could go inside and PO Buglione told them to come. PO Buglione walked in first, followed by § 87(2)(b) and PO Morales in the rear. The living room looked like an office. PO Morales stood in the living room and didn't do anything. The girls got all the papers that belonged to their mom. PO Buglione walked to § 87(2)(b)'s desk and began going through a pile of papers. He asked what their names were again, and he began handing them the papers that said their names. Then they took them and left. § 87(2)(b) estimated that they were in § 87(2)(b)'s apartment for three minutes in total. After closing the door to the apartment, PO Buglione told § 87(2)(b) and § 87(2)(b) "This never fucking happened. Don't tell anyone."

§ 87(2)(b) in a verified written statement (see Board Review #30) stated that she received a call from her mother saying she had been attacked and she and her sister, § 87(2)(b) rushed across the street saw her mother, bruised and beaten. They both called 911. The police arrived and asked § 87(2)(b) what happened. An ambulance also came and checked out § 87(2)(b). The officers went to § 87(2)(b)'s apartment and § 87(2)(b) asked the officers if they could also come and get § 87(2)(b)'s shoe, which was missing, and any remaining paperwork. An officer said that was fine, as long as they didn't start anything. § 87(2)(b) and her grandmother, § 87(2)(b) went with the officers to speak to § 87(2)(b). After the officers were done, an officer, identified through investigation as PO Morales, informed them that § 87(2)(b) was coming out, but instructed them to be silent and let him walk past. Although the officers returned with § 87(2)(b)'s shoe, they did not bring any paperwork. § 87(2)(b) and § 87(2)(b) begged the officers for the paperwork. § 87(2)(b) explained she needed the paper because she was leaving to college in a few days. PO Morales was concerned, but the other officer, identified through investigation as PO Buglione, was very sarcastic and clueless. PO Morales asked § 87(2)(b) where she went to school and she told him § 87(2)(b). She then asked the officers again if she could have the paperwork and eventually they agreed, but told them they had to be quick. § 87(2)(b) and § 87(2)(b) walked in with PO Buglione and immediately saw that there was some sort of dispute over the papers. The first paper with § 87(2)(b)'s name on it was crumpled in one corner and there were more papers scattered throughout the living room. § 87(2)(b) and her sister grabbed all that they could and then headed out.

§ 87(2)(b) (see Board Review #19) stated that at some point, § 87(2)(b) was taken outside and both § 87(2)(b) and § 87(2)(b) asked PO Buglione if they could retrieve § 87(2)(b) paperwork. PO Buglione asked where the paperwork was and they replied that they did not know because they weren't inside the apartment. Then either the cops or § 87(2)(b) went in and got the paperwork. She said the door to § 87(2)(b)'s apartment was open, so they just walked in, grabbed the papers and left. § 87(2)(b) was standing in the behind them and could not recall who went inside, but the officers kept telling her to go back in the hallway.

PO Morales (see Board Review #23) stated that as § 87(2)(b) was finishing her paperwork with EMS, he went to speak to § 87(2)(b) and § 87(2)(b). He did not know if PO Buglione had interacted with them prior, but stated that they stayed on scene next to him the whole time—though he noted that he had largely focused on § 87(2)(b). PO Morales stated that he had a positive interaction with § 87(2)(b). They spoke about college and § 87(2)(b) mentioned that the reason they were working with § 87(2)(b) in the first place was because they were doing their taxes for something college related. PO Morales could not recall them telling him that there had been paperwork left in the apartment and they did not ask him if they could retrieve it.

PO Buglione (see Board Review #22) stated that after he was handcuffed, § 87(2)(b) asked PO Buglione to lock his door and grab his glasses. PO Buglione told him that he only felt comfortable grabbing his keys and locking his door. PO Buglione then grabbed § 87(2)(b)'s keys, turned off the lights and locked the door. As he was walking § 87(2)(b) out, he saw § 87(2)(b) and § 87(2)(b) still standing in the lobby. § 87(2)(b) identified herself and the girls asked to speak to PO Buglione about papers they needed for college. PO Buglione told them to wait and after placing § 87(2)(b) in the RMP, he returned to the building. He believed he was with PO Velger and PO Morales. The girls told him that they had some personal property that was still in the apartment and wanted to grab it. PO Buglione told them that he could open the door and point out what they had, but that as far as it could go—they could not get anything out of there. PO Buglione then opened the door, which was unlocked. He stated that he mainly opened the door to calm them down, because the girls were upset about the situation. When he opened the door, PO Buglione saw a bunch of paperwork. He said that he couldn't see that much because the lights were off. After opening the door, the girls said that they couldn't spot whatever personal property they had inside the apartment. PO Buglione told them that he couldn't hand them the paperwork because he didn't know what it was and didn't want to be responsible for taking it. He said that if they were to point out something like, earrings, he would be willing to give it to them. Given, however, that § 87(2)(b) and § 87(2)(b) had gotten into a fight over the paperwork, he did not feel comfortable giving it to them. PO Buglione stated that he did not go into the apartment, go into § 87(2)(b)'s desk or grab papers for the girls. The girls did not enter the apartment or grab any paperwork. He did not instruct them not to "Fucking tell anyone." PO Buglione estimated that the interaction lasted approximately a minute. He then closed and locked the door. PO Velger (see Board Review #24), testified that he had not been involved in an incident with PO Buglione where he was asked to retrieve documents from someone's apartment.

In *Payton v. New York*, 445 U.S. 573, the Court held that absent exigent circumstances, police may not make warrantless entries (see Board Review #31). *People v. McBride*, 902 N.Y.S. 2d 830 (2010), defined exigent circumstances to include: the gravity or violent nature of the offense with which the suspect is to be charged; whether the suspect is reasonably believed to be armed; a clear showing of probable cause to believe that the suspect committed the crime; strong reason to believe the suspect is in the premises being entered; a likelihood that the suspect will escape if not swiftly apprehended; and the peaceful circumstances of entry (see Board Review #32). In *People v. Mendoza*, 18 N.Y.S.3d 291, 295 (2014), drawing on *Payton*, the Supreme Court of New York defined the threshold as “the area between the door jambs—no more and no less,” and found that crossing the threshold, even by mere inches constituted a warrantless entry (see Board Review #33).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as ***Substantiated***.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as ***Unsubstantiated***.

Patrol Guide Procedure 203-09 states that officers must be “courteous” and respectful” (see Board Review #28).

§ 87(2)(b) testified that after entering and searching § 87(2)(b)'s apartment, PO Buglione instructed both § 87(2)(b) and § 87(2)(b) “This never fucking happened.” In her written statement, § 87(2)(b) did not mention the use of profanity

by PO Buglione. PO Buglione denied searching § 87(2)(b)'s apartment or using profanity towards the girls. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as *Unsubstantiated*.

Allegation G - Discourtesy: Police Officer Charles Buglione spoke discourteously to § 87(2)(b) at the 42nd Precinct Stationhouse.

Allegation H - Offensive Language: Police Officer Charles Buglione made remarks to § 87(2)(b) based upon race at the 42nd Precinct Stationhouse.

Allegation I - Discourtesy: Police Officer Charles Buglione spoke discourteously to § 87(2)(b) at the 42nd Precinct Stationhouse.

It is undisputed that after being placed under arrest, both § 87(2)(b) and § 87(2)(b) were taken to the 42nd Precinct stationhouse where they were subsequently released with DATs. § 87(2)(g)

§ 87(2)(b) (see Board Review #17) testified that when they arrived at the stationhouse, she spoke to the desk sergeant, who asked where she and § 87(2)(b) lived. The desk sergeant replied that because it was a domestic issue, they could not get a DAT. PO Morales explained to the desk sergeant that § 87(2)(b) and § 87(2)(b) were not intimate. § 87(2)(b) then made a comment about knowing people who worked in the precinct. PO Buglione replied, "Yeah, cuz that shows how many fucking times you've been to jail." § 87(2)(b) replied that she didn't know how many times she had been to jail. PO Buglione said, "This shit is fucking stupid. I don't have time for this shit. You people don't know how to act." PO Morales then placed § 87(2)(b) and § 87(2)(b) in side-by-side cells. § 87(2)(b) who could not be reached, was later placed in § 87(2)(b)'s cell. PO Buglione told them, "I'm going to put you in a cell and you motherfuckers better not speak to each other. I don't want to hear a word. I don't want to hear shit. Because if I hear something coming out of those fucking cells, you're going to go through booking the way you should." After the police took photos of them, PO Morales entered § 87(2)(b) cell. § 87(2)(b) told PO Morales that she shouldn't have been arrested because she had been attacked and PO Morales replied that he hadn't made the call, as he would not have had her arrested. § 87(2)(b) was about to respond, when PO Buglione interrupted and said, "You motherfuckers don't listen? Don't ask my partner shit. You're going to get your paperwork and you're fucking going to court. You're going to get your papers. You're going to sign them and you're going to get out of here. I'm telling you now when you get to your block if I get another call involving either one of you; you motherfuckers are going to jail." § 87(2)(b) decided to stop asking questions and was subsequently released. After she was let out, she again spoke to PO Morales who reiterated that he didn't agree with what had happened, but it hadn't been his call.

PO Morales (see Board Review #23) stated that on the way to the stationhouse, § 87(2)(b) was very nonchalant and PO Morales talked to her about everything except the arrest. He stated that § 87(2)(b) told her about how long she had lived in the precinct and was naming officers she knew—one of which was PO Morales' mentor. PO Morales asked § 87(2)(b) for her pedigree

information because he wanted some physical evidence to build a case for why she should be issued a DAT. After running her history, it showed that she had been arrested once, in 2005, for a misdemeanor charge. In his head, PO Morales thought he had a good argument for a DAT. He then ran § 87(2)(b)'s information, as he thought it was only fair that if he was giving § 87(2)(b) a DAT, he would give § 87(2)(b) one as well. When they got to the stationhouse, PO Morales put § 87(2)(b) and § 87(2)(b) in their cells. He could not recall if PO Buglione was with him, but did not hear him use profanity towards them. PO Buglione did not appear upset. PO Morales stated that the only time he interacted with § 87(2)(b) and § 87(2)(b) in their cells was when he went to print them. To expedite the processing, PO Morales printed § 87(2)(b) while PO Buglione printed § 87(2)(b). He noted that this was the only time § 87(2)(b) interacted with PO Buglione and there was no conversation beyond fingerprint-related conversation e.g. this finger, that finger, palm. Once the fingerprinting was complete, they put them back in the cells. He stated that he did not hear PO Buglione use profanity towards § 87(2)(b) and § 87(2)(b). He also stated that there was no reason for PO Buglione to threaten § 87(2)(b) with booking, as he had been advocating for her to get a DAT the whole interaction. The desk sergeant approved the DAT. PO Morales informed § 87(2)(b) and § 87(2)(b) that they were going to be given DATs. As § 87(2)(b) was leaving, she asked to speak to PO Morales. PO Morales noted that he did not have to speak with § 87(2)(b) but it had been such a pleasant interaction that he decided to hear her out. § 87(2)(b) told PO Morales that she thought it was unfair that she had been arrested and felt that the system should be different. She told PO Morales that she did not blame him. PO Morales explained to § 87(2)(b) that he understood, but § 87(2)(b) had also called 911 with injuries, and he was bound to arrest his attacker. He did not tell her that if it were up to him, he never would have allowed this to happen. § 87(2)(b) told PO Morales he was awesome.

PO Buglione (see Board Review #22) stated that during transport, § 87(2)(b) was calm and did not say anything about needing medical attention. PO Buglione explained that she had also been arrested since both she and § 87(2)(b) assaulted each other. Once they arrived at the stationhouse, PO Buglione put § 87(2)(b) in the cells. He could not recall her making comments about knowing people that worked in the precinct and did not make any comments about § 87(2)(b) previously being in jail. He added that he had run § 87(2)(b) record at the stationhouse to see if she was eligible for a DAT, and § 87(2)(b) had actually not been to jail that many times. PO Buglione fingerprinted § 87(2)(b) in the cells, while PO Morales fingerprinted § 87(2)(b) in the adjacent cell. During the fingerprinting, § 87(2)(b) remained calm. He did not hear her say anything about being upset that she had been arrested even though she had been attacked. After their prints came back from Albany, they spoke to the desk sergeant about issuing § 87(2)(b) and § 87(2)(b) a DAT. The sergeant said that it was up to them. § 87(2)(b) and § 87(2)(b) were both issued DATs because everything had gone so smoothly and both § 87(2)(b) and § 87(2)(b) had admitted the incident was a mistake that had been taken too far. PO Buglione noted that PO Morales did most of the talking to § 87(2)(b) and he had minimal contact with her. He said that his only real interaction with § 87(2)(b) was at the precinct stationhouse when he was fingerprinting her in the cells. PO Buglione stated that he did not use profanity towards § 87(2)(b) at the stationhouse, or make any reference to “you people” not knowing how to act.

Sgt. Saul Jeune of the 42nd Precinct (see Board Review #34) who was working as Desk Sergeant on the evening of July 22, 2016 could not recall the incident, but stated that he did not recall hearing PO Buglione use profanity towards an arrestee or telling § 87(2)(b) “You people don’t

Patrol Guide Procedure 203-09 states that officers must be “courteous” and respectful” (see Board Review #28). Patrol Guide Procedure 203-10 states that an officer is prohibited from using discourteous or disrespectful remarks regarding another person’s ethnicity or race (see Board Review #29).

It is therefore recommended that **Allegations G, H, and I** be closed as ***Unsubstantiated***.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date